

22STCV12323 22STCV12323

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-21

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Case Number: 22STCV12323 Hearing Date: July 21, 2026 Dept: 731

ALLA KUTZ, an individual, IGOR KUTZ, an individual, Plaintiff(s), vs. MIKHAIL SIRETSKIY, an individual; BIG BLOCK REALTY, INC., a California corporation; CANGAS RE, LLC, a limited liability company; CAL WEST ESCROW, a California corporation; and DOES 1 through 50, inclusive, Defendant(s).

CASE NO: 22STCV12323 [TENTATIVE] ORDER RE: MOTION OF DEFENDANT MIKHAIL SIRETSKIY TO WITHDRAW AND/OR AMEND DEEMED ADMISSIONS TO PLAINTIFFS ALLA KUTZ AND IGOR KUTZ'S REQUESTS FOR ADMISSION PURSUANT TO CODE OF CIVIL PROCEDURE § 2033.300 Dept. 731 8:30 a.m. July 31, 2026

Moving Party: Defendant, Mikhail Siretskiy [in pro per]

Opposing Party: None

Notice: OK

Before the Court is Defendant Mikhail Siretskiy's ("Defendant") unopposed motion for an "order withdrawing and/or amending the matters deemed admitted in response to Plaintiffs Alla Kutz and Igor Kutz's Requests for Admission and permitting Defendant to serve verified responses." (Mot., p. 2.)

After review, and though unopposed, the Court DENIES Defendant's motion.

When a responding party fails to respond to requests for admissions within the statutory or agreed-upon timeframe, the substance of the requests for admission is not automatically deemed admitted; instead, the party who served the requests for admission must make a motion to deem as

admitted the truth of the matters in the requests for admission. (Code Civ. Proc., § 2033.280, subd. (b).) Here, the Court's record fails to reflect that Plaintiffs filed a motion to deem as admitted the truth of their admission requests directed to Defendant Mikhail Siretskiy. Consequently, Defendant is requesting that deemed admissions be withdrawn where no such admissions were ever admitted. No relief, as framed in the notice of motion, can follow. (Cf. Code Civ. Proc., § 2033.280, subd. (a) [waiver of objections to requests for admission and motion mechanism to lift waiver].)

Defendant's motion is accordingly DENIED.

Defendant Mikhail Siretskiy is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court